

TENTATIVE RULING September 09, 2026

Department 35– Michael A. Dauber

Tentative Rulings for Department S37, if posted, are on court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) by 3:00 p.m. and 7:00 p.m. on the court day before the hearing (in some cases, on a non-court day before the hearing). If no tentative ruling is posted by 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8707 in advance of the hearing. If all parties submit on a tentative ruling, the tentative ruling will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CASE NUMBER: CIVSB 2431079 Matthew Strother v. Fontana Unified School District

Motion: Compe Further re: Deposition Document Demands

Movant: Plaintiff Matthew Strother

Respondent: Defendant Fontana Unified School District

Background

This is a retaliation litigation. On October 14, 2024, Plaintiff Matthew Strother filed his Complaint against Defendant Fontana Unified School District (District). The Complaint pleads 2 causes of action: (1) retaliation (Lab. Code, §1102.5), and (2) retaliation (Lab. Code, §6310). Defendant District answered. Plaintiff Strother deposed Defendant District's Person Most Knowledgeable (PMK). The Second Amended Deposition Notice demanded production of documents, which the District objected to. (Fund Decl. at ¶¶4-5, Exh. B.) At issue are three document demands. The parties met and conferred on the matter. (Fund Suppl. Decl. at ¶¶3-7.)

Law

If a deponent fails to answer any question or produce documents noted in the deposition notice, the party seeking such discovery can move for an order compelling the deponent to answer proposed questions and produce the requested documents. (Code Civ. Proc., §2025.480, subd. (a).) Said motion to compel must be made no later than 60 days after the completion of the deposition record and shall be accompanied by a meet and confer declaration under section 2016.040. (Code Civ. Proc., §2025.480, subd. (b).) Notice of the motion shall be given to all the parties and the deponent either orally at the examination or by subsequent service in writing. (Code Civ. Proc., §2025.480, subd. (c).) Sanctions shall be imposed against the person, party, or attorney who unsuccessfully makes or opposes a compel further motion unless the court finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanctions unjust. (Code Civ. Proc., §2025.480, subd. (j).)

Analysis

Demand # 3

Document demand #3 asked for all documents reflecting any actions taken in response to Plaintiff's complaint relating to Orahim. Defendant objected on privacy, attorney-client communication, and attorney work product. Despite the objections, during the PMK's deposition, Barnes testified that all responsive documents had been provided previously, and, in particular, all documents reflecting Plaintiff's Complaint concerning Orahim. (Barnes Depo. at 15:6-10 and 17:14-18:1 [Exh. C to Fund Decl. and Exh. A to Cohen Decl.].) This is not a motion to compel further responses under Code of Civil Procedure section 2031.310. The issue is whether the documents were produced in relation to the PMK's deposition. Per the deposition,

it was made clear that despite the objection, the responsive documents to demand #3 had been previously produced. PMK Barnes, in her declaration in support of the Opposition, reiterates that the only complaints about Orahim were from Plaintiff that led to investigation by the District police and outside law firm. Those records have been produced. (Barnes Decl. at ¶2.) Finally, the deposition transcripts produced demonstrate Plaintiff was able to make appropriate inquiries on the documents. (Barnes Depo. at 46:14-51:4 [Exh. A to Cohen Decl].)

The Court **DENIES** compelling further response to Deposition Document Demand # 3.

Demands # 4 and #5

These asked for all documents reflecting any complaints and any discipline imposed relating to Orahim. Defendant objected to both because they are overbroad, seek irrelevant information, and invade Orahim's privacy interest.

With the Opposition, District confirms no records exist. (Barnes Decl. at ¶¶2-3.) However, that fact is not shown existing within Barnes' deposition. Nonetheless, as phrased, Defendant is correct that the demands are overbroad. The Demands are not limited to the relevant period involved in this litigation. They seek any type of complaint made against Orahim. This litigation concerns matters of Orahim engaging in unsafe and threatening behavior. Plaintiff fails to demand content-specific and relevant period records. But even if the demands were revised to identify relevant periods and topics, the District has indicated no documents exist of any complaints or investigations in Orahim's file other than those produced related to Strother's complaints and investigations to those complaints. This is not a motion to compel further responses to a document demand that would warrant that a written response because after diligent search, no documents exist so obviously nothing can be provided.

The Court **DENIES** compelling further response to Deposition Document Demands # 4 and #5.

Sanctions

Defendant District asked for sanctions against Plaintiff's Counsel. The request was made on a lack of meeting and conferring. Counsel failed to provide factual support for meet and confer efforts. But the supplemental declarations filed on May 5, 2026, and August 18, 2026, indicate efforts were made to resolve the matter soon after the objections were served. Thus, sanctions are not justified.

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Michael A. Dauber Judge San Bernardino Superior Court

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CASE NUMBER: CIVSB252984 Ambriz v. Landeros Furniture City, et al.

Motion: To Compel Further Responses to From Interrogatories; Compel Further Responses to Requests for Production of Documents

Movant: Plaintiff Ambriz

Respondent: Defendant Filemon Landeros, dba Landeros Furniture City

Background

Plaintiff Abraham Ambriz alleges he was subjected to various Labor Code violations in connection with his employment with Defendants Landeros Furniture City and Filemon Landeros. Ambriz commenced suit over the violations against both Defendants in October 2025. Landeros has answered indicating the business is his mere dba.

Ambriz propounded a set of requests for production of documents (RPD's) and form interrogatories, both general and employment interrogatories (FRog's). Responses to the discovery were apparently served on January 23, 2026. The responses largely refuted the existence of an employment relationship and, as a result, no further information was provided. Unsatisfied, Ambriz sent Landeros a meet and confer letter and Landeros responded. After no resolution was reached, the pending motions to compel further responses were filed on March 25. The motions involve RPD No.'s 1-3 and 5-57 in addition to FRog No.'s 4.1, 4.2, 12.1-12.7, 13.1, 13.2, 14.1, 14.2, 15.1, 200.1-200.6, 201.1-201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, and 216.1.

The motions are supported by a separate statement, declarations from attorney Junlin Lui, the discovery and responses, the meet and confer correspondence, and an e-mail to the Court reserving a hearing date. In a separate declaration, Liu indicates the deadline to file the motions was March 11 and the motions were submitted for filing that date. The same day Liu obtained a hearing date from the Court's reservation desk, and he received a responsive e-mail indicating the hearing would be June 8, 2026. However, Liu concedes he left the hearing date blank on the moving papers because the Court's system indicates it requires up to 72 hours to process a reservation. Liu then indicates that the motions were rejected on March 25 because of the purported lack of a hearing date. The documents were then resubmitted the same day for filing (March 25) and bear a "filed" stamp of that date.

The motions are opposed by Landeros on the grounds that the discovery responses are Code-compliant and the motions are untimely. The opposition is supported by declarations from attorney Michael Weiss, the discovery responses, the meet and confer letters, a printout from the Court's website, and the register of action.

Analysis

Meet and Confer

Ambriz only sent Landeros one meet and confer letter. As of January 1, 2026, which was before the motions were filed, meet and confer efforts for discovery motions must be conducted either in person, by telephone, or by video conference. (Code Civ. Proc., § 2016.040, 2030.300, 2030.310.) This did not happen. The hearing is taken off calendar. [Local Rule 560(1)]. The litigants are to meet and confer as required, file declarations supporting the meet and confer and if necessary obtain another reservation date from the court.

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Michael A. Dauber, Judge San Bernardino County Superior Court